

Before the
FEDERAL MARITIME COMMISSION

Docket No. 24-21

PKDC, LLC

v.

CMA CGM S.A.

UNOPPOSED MOTION TO AMEND THE SCHEDULING ORDER

Pursuant to 46 C.F.R. Sections 502.69, 502.79, and 502.102 of the Federal Maritime Commission’s Rules of Practice and Procedure, Complainant PKDC, LLC (“Complainant” or “PKDC”) submits this Unopposed Motion to Amend the Scheduling Order (“Motion”) to amend the scheduling order by fifteen (15) days to allow sufficient time to complete discovery and develop a full record in this matter. As discussed below, good cause exists for the instant Motion.

I. Background

On June 23, 2025, the Presiding Officer entered an amended scheduling order (“Amended Scheduling Order”) with the following deadlines relevant to this Motion:

July 24, 2025	Completion of productions of documents and ESI in response to initial RFPs
August 6, 2025	Disclosure of initial expert reports, if any
August 6, 2025	Last day to serve interrogatories, requests for admission, and RFPs
August 18, 2025	Complete depositions of fact witnesses
August 18, 2025	Disclosure of rebuttal expert reports, if any
September 4, 2025	Complete expert depositions
September 4, 2025	Close of discovery
October 6, 2025	Complainant’s initial brief, proposed findings of fact, and appendix

November 3, 2025	Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix
November 20, 2025	Complainant's reply and responses to proposed findings of fact

In accordance with the Amended Scheduling Order, the parties have been diligently working to complete discovery in this matter and have made substantial progress. This includes reviewing several tens of thousands of documents and serving deposition notices. On July 22, 2025, the parties conferred, and both parties are prepared to produce the bulk of their responses on July 24, 2025 as required by the current scheduling order. However, due to the sheer volume of materials being reviewed, a modest extension would allow for the completion of remaining review and production prior to beginning depositions in this matter.

II. Argument

Rule 102(a) of the Commission's Rules of Practice and Procedure, 46 C.F.R. Section 502.102(a), provides in relevant part: "Motions for enlargement or reduction of time for the filing of any pleading or other document, or in connection with the procedures of subpart L of this part, may be granted upon a showing of good cause." Respondent submits good cause exists in this instance.

a. Extension of Deadlines of Discovery and Briefing

FMC regulations require discovery to be completed within 150 days of a respondent's answer (46 C.F.R. 502.141(g)) which is sufficient time for many disputes. However, this matter involves a multitude of complex claims, a request for substantial reparations, and relevant discovery spans thousands of shipments, denied requests and multiple years. Each of the parties has already collected and reviewed tens of thousands of documents and are prepared to produce tens of thousands of documents on July 24, 2025. However, due

to sheer volume and complexity of document review, a modest amount of additional time is needed for the completion of the remaining review and potential supplemental production.

In complex matters such as the instant case, policy considerations favor allowing sufficient time to develop a complete evidentiary record. In *Samsung Electronics America, Inc. v. SM Line Corp.*, Dkt. No. 23-01, 2024 WL 4357751, at *1 (ALJ Sept. 23, 2024), it was emphasized that the policy and responsibility of the Commission, and by delegation of authority, the presiding judge, is to inquire into and consider all relevant facts. Adherence to a schedule should not override these policy considerations. *See also Anderson International Transport and Own Anderson - Possible Violations of Sections 8(a) and 19 of the Shipping Act of 1984*, Dkt. No. 07-02, 2009 WL 6084172, at *2 (FMC Dec. 4, 2009) (reopening the record because Commission precedent “favors the agency making its decision based on the most complete record available”).

Further, the request will not cause undue delay. The request is for a modest fifteen days, and will not delay the commencement of document production, just allow a short amount of time to finish review and potentially provide a supplemental production.

III. Proposed Amended Schedule

Given the complexity and voluminous nature of the discovery necessary in the instant matter, Complainant requests a fifteen-day extension to the Amended Scheduling Order to complete discovery as follows:

August 8, 2025	Completion of productions of documents and ESI in response to initial RFPs
August 21, 2025	Disclosure of initial expert reports, if any
August 21, 2025	Last day to serve interrogatories, requests for admission, and RFPs
September 2, 2025	Complete depositions of fact witnesses

September 2, 2025	Disclosure of rebuttal expert reports, if any
September 19, 2025	Complete expert depositions
September 19, 2025	Close of discovery
October 21, 2025	Complainant's initial brief, proposed findings of fact, and appendix
November 18, 2025	Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix
November 28, 2025	Complainant's reply and responses to proposed findings of fact

On July 22, 2025, undersigned counsel conferred with counsel for Respondent concerning an extension who indicated that there is no opposition to the extension requested in this motion.

As good cause exists, this extension will not cause undue delay but allow for the creation of a complete record in this complex matter, and there is no opposition, Complainant respectfully requests that the Motion be granted.

WHEREFORE, the Respondent prays that its Unopposed Motion to Amend the Scheduling Order be granted.

Dated: July 22, 2025

Respectfully submitted,

SANDLER, TRAVIS & ROSENBERG, P.A

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Counsel for Complainant PKDC, LLC

CERTIFICATE OF SERVICE

I hereby certify that on July 22, 2025, the foregoing Unopposed Motion was served by email upon counsel for Respondent CMA CGM at the address listed below:

Wayne Rohde Esq.
Counsel for Respondent
WRohde@cozen.com

Dated: July 22, 2025

/s/ Jason M. Kenner
JASON M. KENNER